



COLORADO

Department of
Regulatory Agencies

Division of Professions and Occupations

August 16, 2018

Amy Michelle Padron
4251 Date St
Colorado Springs, CO 80917

Email: amypadron@hotmail.com

RE: Case No. 2017-7198

Dear Ms. Padron:

Enclosed is a copy of the signed Stipulation and Final Agency Order (Order) that became effective August 16, 2018. The Board expects you to read, fully understand, and comply with the requirements outlined in the Order.

CONTINUING EDUCATION: The Order requires you to successfully complete 20 hours each within 12 months (20 total) of Board-approved continuing education (CE) courses in the areas of ethics, record keeping and high conflict divorce/consent for treatment (approval of the courses must be obtained prior to enrolling in each course). These hours may not be counted toward the mandatory Continuing Professional Development requirements or to meet any other licensure requirements.

Your Healthcare Professions Profile will be updated to reflect this Colorado public action. Pursuant to section 24-34-110, C.R.S., your profile must be updated within 30 days of any reportable event. To ensure compliance, you must regularly review and update your profile. To access your profile, go to www.colorado.gov/dora/hppp and click the "Create/Update a Profile" link. For any questions, please contact dora_dpo_hppp@state.co.us

Please contact me at denise.wells@state.co.us, or (303) 894-3004 with any questions or concerns.

Sincerely,

FOR THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

Denise Wells
Discipline and Enforcement Specialist



BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2017-7198

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE REGISTRATION TO PRACTICE AS A PROFESSIONAL COUNSELOR CANDIDATE IN THE STATE OF COLORADO OF AMY PADRON, REGISTRATION NO. LPCC 14975,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Amy Padron ("Respondent"), as follows:

1. Respondent was registered to practice as a professional counselor candidate ("LPCC") in the State of Colorado on October 14, 2016, having been issued registration number LPCC 14975, and is currently so registered.
2. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the complaint in case number 2017-7198 without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2017-7198. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around June 20, 2017, Respondent began providing treatment to a minor client.
 - b. Respondent treated the minor client for approximately three (3) months without consent from the father. Respondent failed to obtain consent for treatment from both parents before initiating treatment.

- c. Respondent showed bias towards one (1) of the parents through a directive she gave to the minor client.

5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Board finds that Respondent violated §§12-43-214(1) and 12-43-222(1)(g)(l) and (p), C.R.S., which state:

§12-43-214. Mandatory disclosure of information to clients. (1) Except as otherwise provided in subsection (4) of this section, every licensee, registrant, or certificate holder shall provide the following information in writing to each client during the initial client contact.

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(g)(l) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

(p) Has failed to comply with any of the requirements pertaining to mandatory disclosure of information to clients pursuant to section 12-43-214.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Board hereby admonishes Respondent for violations of §§12-43-214(1) and 12-43-222(1)(g)(l) and (p), C.R.S. This Order is effective as a Letter of Admonition, set forth by §12-43-224(3)(d), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

8. Within twelve (12) months of the effective date of this Order, Respondent must successfully complete twenty (20) hours of Board-approved professional continuing education ("CE") courses in the areas of recordkeeping, ethics, and high conflict divorce/consent for treatment. Respondent shall obtain Board approval of

the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Board. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado registration or to meet any other registration or licensure requirements.

TERMS AND CONDITIONS

9. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

10. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

11. In the event Respondent relocates at any time prior to completing the terms of this Order, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

12. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

13. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

14. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

15. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

16. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for

further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

17. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

18. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

19. This Order shall be admissible as evidence at any hearing held before the Board.

20. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT


AMY PADRON
LPCC 14019

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


DARCIE MAGNUSON
Program Director

Effective this 16th day of August,
2018.

CERTIFICATE OF SERVICE

This is to certify that I have duly served the within fully executed **STIPULATION AND FINAL AGENCY ORDER** upon all parties herein by electronic means or by depositing copies of same in the United States mail, first-class postage prepaid, at Denver, Colorado, this 16th day of August, 2018, addressed as follows:

Amy Padron, LPCC
4251 Date St.
Colorado Springs, CO 80917
By email: amypadron@hotmail.com

Robert A. Lees
Robert A. Lees & Associates
5290 DTC Pkwy., Ste 150
Greenwood Village, CO 80111
By email: ral@robertalees.com; kbroman@robertalees.com



Division Staff



COLORADO

Department of
Regulatory Agencies

Division of Professions and Occupations

December 11, 2018

Amy Michelle Padron
4251 Date St
Colorado Springs, CO 80917

Email: amypadron@hotmail.com

Re: Case #s 2017-7198

Dear Ms. Padron:

On August 16, 2018, the State Board of Licensed Professional Counselor Examiners issued you a Stipulation and Final Agency order based on the above referenced complaint.

To date you have satisfied all the terms and conditions of your stipulation. Your license is now Active without conditions.

Let me know if you have any additional questions. Please contact me at denise.wells@state.co.us, or by phone at 303-894-3004.

Sincerely,

FOR THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

Denise Wells
Discipline and Enforcement Specialist

